

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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INFALLIBLE DAVIS,

Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. MATTHEW MIRET (SHIELD #7813)
P.O. RUBENSON MARCELLUS (SHIELD #14793)**
Defendant.

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 29, 2023


MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, New York 10017
(212)405-2233

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

OFFICER MATTHEW MIRET (SHEILD # 7813)
PSA 7
737 Melrose Avenue
Bronx, NY 10451

OFFICER RUBENSON MARCELLUS (SHIELD #14793)
42nd Precinct
830 Washington Avenue
Bronx, NY 10451

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
INFALLIBLE DAVIS

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
P.O. MATTHEW MIRET (SHIELD #7813)
P.O. RUBENSON MARCELLUS (SHIELD #14793)**

Defendant.
=====X

Plaintiff INFALLIBLE DAVIS, by his attorneys MARTINDALE &
ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of
the Defendant, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter
“CITY”), was and still is a municipal corporation organized and existing under
and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter
“NYPD”) officers, including P.O. Matthew Miret (hereinafter “MIRET”), P.O.
Rubenson Marcellus (hereinafter “MARCELLUS”), mentioned herein were, at

the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff INFALLIBLE DAVIS (hereinafter "DAVIS") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 4:35am on June 27, 2018, in and around 1075 Washington Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. In the early morning of June 27, 2018, at approximately 4:30am, DAVIS was coming from a get together in the vicinity of E169th Street and Boston Rd, in the county of The Bronx.
10. As DAVIS was walking along Washington Avenue, he encountered an NYPD vehicle.
11. The NYPD officers inside the vehicle, MIRET and MARCELLUS, yelled "hey" towards DAVIS, antagonizing him as they drove by.
12. Having been harassed by NYPD in the past, and considering he was alone in the middle of the night with no one else around, DAVIS ran away from the NYPD vehicle.
13. In the vicinity of 1075 Washington Avenue, MIRET and MARCELLUS caught up with DAVIS in their NYPD vehicle and struck DAVIS with their vehicle.
14. DAVIS was hit so hard by the NYPD vehicle that his sneaker came off.
15. After DAVIS was hit by the NYPD vehicle, he was laid out on the ground in significant pain.
16. As DAVIS laid on the ground in pain, he was handcuffed by MIRET and MARCELLUS and waited for an ambulance to arrive.
17. Approximately 10 minutes later, the ambulance arrived and DAVIS was placed on a gurney and hoisted up into the ambulance, handcuffed to the gurney.
18. DAVIS was taken to Lincoln Hospital and x-rayed, with the x-rays coming back negative for any broken bones.

19. After being x-rayed, DAVIS was taken to the 42nd Precinct to be processed, with DAVIS not knowing why he had been arrested in the first place.
20. Eventually DAVIS was taken to central booking in Bronx County where he was eventually met by an attorney from The Legal Aid Society where DAVIS learned he was being charged with Criminal Possession of a Weapon in the Second Degree as a Felony.
21. Based on the level of felony, DAVIS was remanded and sent to the Vernon C. Bain Correctional facility (commonly referred to as "The Boat").
22. DAVIS spent 10 days at VCBC before he was released.
23. DAVIS maintained his innocence throughout the pendency of the criminal prosecution, turning down multiple plea bargain offers throughout the twenty plus court appearances over nearly three and a half years.
24. DAVIS' underlying criminal case was finally DIMISSED on October 14, 2021.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN
VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

25. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.
26. Plaintiff sues all Defendants in their capacities.

27. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and malicious prosecution were all carried out without a warrant or probable cause and with malice.

28. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

29. Prior to October 14, 2021, NYC and the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of NYC to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY.

30. It was the policy and/or custom of CITY to inadequately supervise and train it's police officers, managers and employees including the respondent officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests.

31. The respondents' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

32. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:

- (a) Freedom from assault to his person,
- (b) Freedom from battery to his person,
- (c) Freedom from illegal search and seizure,
- (d) Freedom from false arrest,
- (e) Freedom from malicious prosecution,
- (f) Freedom from the use of excessive force during the arrest process.

33. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

34. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING
AND SUPERVISION**

35. Plaintiff repeats and re-alleges each and every allegation above as if set forth at length herein.

36. Prior to on or about October 14, 2021, Defendant NYC knew or should have known Defendants MIRET and MARCELLUS to be unruly and to verbally threaten and to harass other human beings and to make unlawful arrests.

37. That defendant NYC negligently hired and trained P.O. PERULLO and P.O. DOE, negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.

38. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

39. DAVIS repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein

40. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, malicious prosecution, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of DAVIS.

41. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the DAVIS without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against DAVIS were false or without merit, yet that they detained and prosecuted DAVIS with the intention of causing further harm and duress to DAVIS.

42. Defendants knew that their conduct would cause severe and extreme emotional harm to the DAVIS and injury to his good name and reputation.

43. Said harm did in fact occur in this case, in that DAVIS was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

44. By reason of the foregoing, DAVIS sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

45. DAVIS repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

46. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for DAVIS well-being, and were based on a lack of concern and ill-will towards DAVIS.

47. DAVIS therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff INFALLIBLE DAVIS demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

June 29, 2023

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: 
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
June 29, 2023

DocuSigned by:

Infallible Davis

E7AE3C271BD046F

INFALLIBLE DAVIS

Subscribed and sworn to before me, this 29th day of June 2023

Notary Public

CONWAY C MARTINDALE II
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 5/26/27

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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INFALLIBLE DAVIS,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
P.O. MATTHEW MIRET (SHIELD #7813)
P.O. RUBENSON MARCELLUS (SHIELD #14793)**

Defendant.

SUMMONS & COMPLAINT

**Martindale & Associates, PLLC
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY. 10168
(212) 405-2233**

TO: **CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

OFFICER MATTHEW MIRET (SHEILD # 7813)
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